

KALE REALTY

SKIP THE DISCLOSURE, BUY YOURSELF A LAWSUIT.

Illinois law makes the seller liable, not just awkward at closing.

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**MOST AGENTS
TREAT THE
DISCLOSURE FORM
LIKE PAPERWORK.
IN ILLINOIS, IT'S A
STATUTE.**

Leave a known defect off it, and the seller can be sued for actual damages plus court costs.

DISCLOSED AND PRICED IN CLOSES. HIDDEN BECOMES A JUDGMENT.

Illinois' Residential Real Property Disclosure Act (765 ILCS 77) makes a seller who knowingly leaves a material defect off the form liable for the buyer's actual damages plus court costs. A basement that floods every spring, painted over and marked "unaware," isn't a problem that goes away. It's a problem that waits for the first storm, then becomes the seller's bill and the agent's reputation. A defect disclosed and priced into the deal, repaired or credited at closing, still closes. The same defect hidden turns into a rescission fight or a judgment.

WHAT YOU DO BEFORE THE NEXT LISTING GOES LIVE:

- 1 Ask the direct question yourself.**
"Has anything ever flooded, leaked, or been repaired for
- 2 water damage?" Don't wait for the seller to volunteer it.**
- 3 Put the answer on the form, in writing.**
If a seller asks you to leave something off,
- 4 that's the moment to say no, not the moment to go along with it.**
- 5 Price it in instead of hiding it.**
Get a repair bid or credit the buyer at closing. A
- 6 known, priced defect is a normal negotiation, not a lawsuit.**
- 7 Know the statute number.**
765 ILCS 77 gives you something concrete to point to when a
- 8 seller pushes back on disclosing.**

THE TAKEAWAY

**WALK THE
DISCLOSURE FORM
LINE BY LINE WITH
YOUR NEXT
SELLER, BEFORE IT
GOES LIVE.**

A documented defect is a closed deal. A hidden one is a liability for both of you.